

contra. Holt Chief Justice: then it has been over-ruled several times since. And though that statute was made to prevent vexation, yet there are several exceptions. Adjournatur.

And afterwards at another day Mr. Bridges against the prohibition argued, that if a prohibition should be granted, there would be a failure of justice, because Molton cannot maintain a suit in the Court of the Bishop of Lincoln for the subtraction of these tithes. And Mr. Broderick of the same side said, that the statute of 32 H. 8, c. 7, s. 2, which says, that persons withdrawing tithes shall be convened before the Ordinary of the place where they were withdrawn, will amount to a repeal of 23 H. 8, c. 9, s. 2, if it had been within the intent of the said Act, which he said was never intended. But Jenner Serjeant cited 13 Co. 6. *Porter v. Rochester*, Palm. 488. Hob. 185, *Jones v. Jones*. 1 Roll. Rep. 328. And as to suits upon wills, they might transmit them to the diocese where the party lives. [See Godb. 191, *Frances v. Powell*.] And that civilians had told him, that they can sue a man in the Spiritual Court of the diocese where he resides, for tithes which he ought to pay for lands in another diocese. But to that Broderick said, that a suit for tithes was local. And for that he cited 1 Keb. 481, *Rogers v. Harding*. But per Holt Chief Justice, the statute 32 H. 8, c. 7, did not intend to repeal any part of 23 H. 8, c. 9, s. 2. But the question is here, whether there is any remedy in Lincolnshire for this subtraction of tithes within the diocese of York? The Civil Law Courts may transmit any cause into another Civil Law Court, and so they do every day for causes arising in the Admiralty of France. But here the question is, whether the jurisdiction arose from the cause, or from the person? If a will be proved in the Prerogative Court of Canterbury, a suit upon it for a legacy, &c. must be in the Arches, which is the provincial Court, though the party lives in another diocese. See the saving of the statute 23 H. 8, c. 9, s. 5, for that, adjournatur. And afterwards a prohibition was granted to the end that the parties should declare upon it; so that the question might come more judicially before the Court. Post, 534.

[454] DR. GROENVELT v. DR. BURWELL ET AL', Censors of the College of Physicians.

Intr. Mich. 9 Will 3, B. R. Rot. 178.

S. C. Com. 76. 12 Mod. 386. Pleadings post, vol. 3, p. 278.

[Adopted, *Kemp v. Neville*, 1861, 10 C. B. (N. S.) 548; 4 L. T. 640; *Wildes v. Russell*, 1866, L. R. 1 C. P. 742.]

A bailiff may justify an act under any warrant he had at the time he did it. And a traverse that he did it by virtue of that warrant, is bad. S. C. 3 Salk. 354. Vide ante, 408, and the cases there cited. A power to examine, hear and punish, makes a man a Judge. S. C. Salk. 200, 396. Holt, 84. A power to punish by fine and imprisonment a Judge of Record. S. C. Salk. 200, 396. Holt, 184, 537. Carth. 491, cit. 3 Bl. Com. 24, 25. No action lies against a man for what he does as Judge. S. C. Salk. 396. Holt, 184, 395. R. 12 Co. 24. 2 Mod. 218. Nor does an indictment. S. C. Salk. 396. Holt, 184, 395. Matter of record cannot be traversed. S. C. Salk. 396. Holt, 395, 536. Carth. 491. In a justification by the censors of the College of Physicians under the conviction of a practiser in physic by them for mala praxis, it is sufficient to state generally that the party administered unwholesome medicines. S. C. Carth. 491. Holt, 536. And the disorder under which his patients laboured need not be shewn. A neglect in an inferior jurisdiction to examine upon oath will not make its judgment void. An arrest and imprisonment includes an assault. S. C. Carth. 491. Holt, 536. As to the vi et armis, battery, and wounding, the defendants plead not guilty. And as to the residue of the trespass and imprisonment. The letters patent of H. 8, incorporating and erecting the College of Physicians in London, with power to elect a president,